

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL
(EUROPE) LIMITED., *Respondents and Third-Party
Complainants*

v.

SAMSUNG ELECTRONICS COMPANY, LTD., *Third-Party
Respondent.*

DOCKET NO. 24-17

Served: September 30, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge.*

**ORDER DENYING COMPLAINANT’S MOTION FOR ENLARGEMENT OF TIME WITHOUT
PREJUDICE**

On September 23, 2025, Complainant filed a Motion for Enlargement of Time (“MET”). Complainant’s MET asserts that more time is needed for discovery. The MET does not ask for a particular length of extension (*e.g.*, 15 days), but instead asks for a status conference. In addition, the MET indicates that Complainant did not consult with counsel for OOCL due to a religious holiday.

OOCL filed a response on September 29, 2025, generally arguing that Complainant did not ask for an extension properly.

Commission Rule 71(a) provides:

Duty to confer. Before filing a non-dispositive motion as defined in § 502.69(g) of this subpart, the parties must attempt to discuss the anticipated motion with each other in a good faith effort to determine whether there is any opposition to the relief sought and, if there is opposition, to narrow the areas of disagreement. The moving party must state within the body of the motion what attempt was made or that the discussion occurred and whether the motion is opposed.

(46 C.F.R. § 502.71(a)).

The MET is **DENIED** without prejudice because I find that the duty to confer was not satisfied. I appreciate that there was a religious holiday on September 23, 2025. I also appreciate that OOCL asked for an extension to respond to Complainant's Motion to Dismiss OOCL's Amended Counterclaim based on the religious holiday. Nothing about Complainant's Motion for Enlargement of Time, however, required it to be filed on September 23, 2025. Further, two firms and seven attorneys have filed notices of appearance for OOCL; it is unclear that all seven were unavailable.

Complainant may file a renewed motion to extend time after conferring properly with counsel for OOCL. Any future request for an extension is to include a specific length of request. The requested extension should also consider that the deadline for resolving this matter is March 30, 2026.

Richard C.
Ambrow Jr -S

Digitally signed by Richard C. Ambrow Jr -S
Date: 2025.09.30 07:32:18 -07'00'

Richard Ambrow
Administrative Law Judge